

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

DECLARATION OF PETER F. BLACK
IN SUPPORT OF CLAIMANT'S MOTION FOR SANCTIONS

I, Peter F. Black, hereby declare as follows:

1. I am a Partner at Mills Black LLP and counsel for Complainant Samsung Electronics America, Inc. ("Complainant" or "SEA"). I submit this Declaration in support of SEA's Motion for Sanctions.
2. I am the lead attorney for SEA in this matter, am fully familiar with the proceedings in this case, and have personal knowledge of the facts set forth in this Declaration.
3. On February 20, 2026, Complainant SEA and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, "OOCL") attended a discovery conference with Judge Ambrow.
4. Later that same day, Judge Ambrow issued an Order Following Second Status Conference (Doc. No. 120), which Ordered OOCL to: "produce to SEA a sworn declaration no later than March 13, 2026, from one (or more) knowledgeable witness(es)

describing: a) the process by which it performed document searches in response to SEA's discovery requests, including the date ranges used, the custodians or systems searched, and search terms used; b) identification of all other potentially relevant custodians or systems, including all persons in, and systems used by, OOCL's North American Customer Service, Demurrage and Detention during the January 1, 2020-December 31, 2022, timeframe; and c) the process by which OOCL charged demurrage, detention and other fees during the January 1, 2020-December 31, 2022, timeframe."

5. On March 13, 2026, OOCL served three declarations: one from Mr. Kenneth Carruth, Assistant Director of CoDiscover (OOCL's e-discovery vendor); one from Mr. Gavin Murdoch, Vice President of Risk and Compliance at OOCL (USA) Inc.; and one from Ms. Tracy Sha, Director of Documentation and Invoicing at OOCL (USA) Inc. True and correct copies of those declarations, along with their cover note, are attached as **Exhibit A**.
6. On March 31, 2026, SEA sent OOCL a letter outlining the deficiencies it had identified in OOCL's Declarations. SEA's letter requested supplemental declarations by April 7, 2026 to address the identified deficiencies. A true and correct copy of that letter is attached as **Exhibit B**.
7. On April 2, 2026, OOCL sent a link to a production with Bates number OOCL_58576 to OOCL_77540.
8. OOCL did not respond to SEA's March 31, 2026 letter on or before April 7, 2026.
9. On April 8, 2026, SEA sent OOCL an email to arrange a meet and confer conference.
10. On April 11, 2026 OOCL sent links to two additional productions with Bates numbering OOCL_77541 to OOCL_609859.

11. On April 13, 2026, OOCL sent SEA a letter describing the generic contents of its production made on April 11, 2026 and advising that it believes its documentation production to be complete, subject to supplemental productions which may be required. A true and correct copy of that letter is attached as **Exhibit C**.
12. On April 14, 2026, the parties met to discuss the OOCL Declarations.
13. On April 15, 2026, SEA sent OOCL a letter confirming its understanding from the meet and confer and advising that it intended to file a Motion to Compel based on the deficiencies identified in OOCL's Declarations. A true and correct copy of that letter is attached at **Exhibit D**.
14. On April 17, 2026, OOCL responded by letter to SEA, arguing that it had satisfied the Order of February 20, 2026. A true and correct copy of that letter is attached as **Exhibit E**.
15. On April 24, 2026, SEA sent OOCL an email advising that in light of the relief sought, it's contemplated Motion to Compel had been restyled as a Motion for Sanctions. A true and correct copy of that email is attached as **Exhibit F**.

I declare under the penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 24th day of April, 2026, in Washington, DC.

/s/ **Peter F. Black**
Peter Fischer Black
Mills Black LLP